

" the hospital or place for the reception of sick persons in a public prison
 " or a detention barrack is detached from the prison or detention barrack,
 " a military prisoner or a soldier undergoing detention may be detained in
 " that hospital or place, and conveyed to or from the same as circumstances
 " require.

" (5) A military prisoner or a soldier undergoing detention, during
 " his conveyance from place to place, or when on board ship or otherwise,
 " may be subjected to such restraint as is necessary for his safe custody
 " and removal.

" (6) The discharging authority hereafter mentioned may, at any time
 " during the period of the imprisonment of a military prisoner, or of
 " the detention of a soldier undergoing detention, by order discharge the
 " prisoner or soldier.

" (7) The committing authority or any other prescribed authority may
 " at any time by order remove a military prisoner from one public prison
 " or detention barrack to another prison or detention barrack, or a soldier
 " undergoing detention from one detention barrack to another, so that
 " he be not removed from a prison or detention barrack in the United
 " Kingdom to a prison or detention barrack elsewhere.

" (8) The removing authority hereafter mentioned may, at any time
 " during the period of the imprisonment of a military prisoner or of the
 " detention of a soldier undergoing detention, from time to time by order
 " provide for his being brought before a court-martial, or any civil court,
 " either as a witness, or for trial or otherwise, and an order of such
 " authority shall be a sufficient warrant for delivering him into military
 " custody and detaining him in custody until he can be returned, and for
 " returning him to the place from whence he is brought, or to such other
 " place as may be determined by the removing authority."

CHAPTER 3.

An Act to repeal the Law, which prohibits the Growing
 of Tobacco in Ireland. [4th July 1907.]

WHEREAS it is of the greatest importance that every
 attention and encouragement should be given to the
 produce and manufactures of Ireland :

1 & 2 Will. 4.
 c. 13.

And whereas by virtue of the Tobacco Cultivation Act, 1831,
 the cultivation of tobacco within the kingdom of Ireland, and
 the exportation of the same from thence, is prohibited :

Be it therefore enacted by the King's most Excellent
 Majesty, by and with the advice and consent of the Lords
 Spiritual and Temporal, and Commons, in this present
 Parliament assembled, and by the authority of the same, as
 follows :

Acts pro-
 hibiting
 growth of
 tobacco in
 Ireland to be
 repealed when
 an excise duty
 is imposed.

1.—(1) As from a date to be fixed by His Majesty by Order
 in Council as soon as Parliament has made provision for an
 excise duty on tobacco produced in Ireland, the Tobacco
 Cultivation Act, 1831, and any other Act, so far as it pro-
 hibits or restrains the setting, planting, or improving to grow,
 making or curing tobacco, either in seed, plant, or otherwise,
 in the kingdom of Ireland, shall be, and the same is, hereby
 repealed and made void.

(2) The Commissioners of Inland Revenue may make regu-
 lations prohibiting the growth or cultivation of tobacco in

Ireland and the manufacture or preparation of tobacco grown in Ireland except by persons holding a licence, and on land or premises approved by the Commissioners for the purpose, and for fixing the date of the expiration of a licence, and also for regulating such growth, cultivation, manufacture, or preparation, with a view to securing and collecting any excise duty for the time being payable in respect of tobacco, and for applying thereto any provision of the law relating to excise, or of the Manufactured Tobacco Act, 1863, or any Act amending the same, and, if any person acts in contravention of or fails to comply with any of those regulations, the article in respect of which the offence is committed shall be forfeited, and the person committing the offence shall be liable in respect of each offence to an excise penalty of fifty pounds.

26 & 27 Vict.
c. 7.

2. Notwithstanding anything in any Act, the Commissioners of Inland Revenue may permit any persons to grow tobacco in Ireland for experimental purposes only subject to any special regulations and conditions they think fit, and subject to any allowance in respect of any duty for the time being payable as may be sanctioned by the Treasury.

Power to
authorise
growth of
tobacco for
experimental
purposes.

3. This Act may be cited as the Irish Tobacco Act, 1907.

Short title.

CHAPTER 4.

An Act to extend the Destructive Insects Act, 1877, to all Pests destructive to Crops, Trees, or Bushes.

[4th July 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

I.—(1) The Board of Agriculture and Fisheries may, for the purpose of preventing the introduction into Great Britain of any insect, fungus, or other pest destructive to agricultural or horticultural crops or to trees or bushes, and for preventing the spreading in Great Britain of any such insect, fungus, or other pest, exercise all such powers as may be exercised by the Board in relation to the Colorado beetle under the Destructive Insects Act, 1877 ; and that Act shall apply accordingly as if in that Act the expression " insect " included all such insects, fungi, and other pests, and the expression " crop " included all such crops, trees, and bushes :

Extension of
40 & 41 Vict.
c. 68 to all
pests.

Provided that the Board shall not make an order directing the payment of compensation by any local authority for the removal or destruction of any crop or any trees or bushes unless the local authority consent to make the payment.